

has two *daughters* only, so that the estate shifts over to B., both the daughters of A. are younger children, and entitled to share the portions between them (*e*).

[*389] *6. **Eldest son may be a younger son.**—The rule that a younger son who at the time of distribution takes the estate and so becomes the eldest son, is excluded from sharing in the portions, must be qualified by the condition that he takes the estate under the same settlement, or under some settlement incorporated into the portions' settlement, for otherwise he retains his rights as a younger son. Thus an estate was settled to the use of A. for life, with remainder (subject to A.'s wife's annuity) to the use of his first and other sons in tail, with a trust for raising portions on the death of the wife for younger children, to be vested at twenty-one or marriage. A. had two sons, Henry the eldest, and George, and after the death of A. in 1842, but during the lifetime of A.'s widow, and therefore before the portions were raisable, Henry barred the entail and devised the estate to his brother George; and it was held that on the death of A.'s widow in 1857, when the portions became raisable, George was entitled to share in the portions, though he was then the eldest son and was the owner of the estate, because he derived his title to it, not as eldest son under the settlement, but as devisee of his brother (*a*).

7. **Eldest son parting with the estate.**—But if at the time of distribution the eldest son *has not* the estate, but except for his own act (as in joining with his father in defeating the entail and resettling the property) he *would have had* the estate, he is not allowed to plead the want of the estate and to claim as a portionist (*b*).

8. **Whether the rule applies only to parents or persons loco parentis.**—The doctrine of portions as laid down in Chad-

(*e*) Beale v. Beale, 1 P. W. 244; and see Butler v. Duncomb, 1 P. W. 448; Hall v. Luckup, 4 Sim. 5; Emery v. England, 3 Ves. 232.

(*a*) Adams v. Beck, 25 Beav. 648; Sandeman v. Mackenzie, 1 J. & H. 613; Sing v. Leslie, 10 Jur. N. S. 794; Macoubrey v. Jones, 2 K. & J.

685; Spencer v. Spencer, 8 Sim. 87; Wandesforde v. Carrick, 5 I. R. Eq. 486; [Domville v. Winnington, 26 Ch. D. 382;] Peacocke v. Pares, 2 Keen. 689, must be considered as overruled.

(*b*) Stanhope v. Collingwood, 4 L. R. Eq. 286; Collingwood v. Stanhope, 4 L. R. H. L. 43.